

THOMAS, J., concurring

damages were generally brought under state tort law. See *Wheeldin v. Wheeler*, 373 U. S. 647, 652 (1963). *Bivens* thus opened the door to a new avenue for recovering damages from federal officers. In the wake of that decision, the Court recognized an implied cause of action for damages against a Member of Congress accused of sex discrimination in violation of the Fifth Amendment’s Due Process Clause, *Davis v. Passman*, 442 U. S. 228 (1979), and against prison officials accused of denying medical care in violation of the Eighth Amendment’s Cruel and Unusual Punishments Clause, *Carlson v. Green*, 446 U. S. 14 (1980). Given this Court’s trend of creating implied causes of action, “there was a possibility that the Court would keep expanding *Bivens* until it became the substantial equivalent of 42 U. S. C. § 1983.” *Ziglar v. Abbasi*, 582 U. S. 120, 132 (2017) (internal quotation marks omitted).

The Court, however, eventually corrected course. In the statutory context, the Court “retreated from [its] previous willingness to imply a cause of action where Congress has not provided one.” *Malesko*, 534 U. S., at 67, n. 3. After a series of decisions limiting courts’ discretion to create statutory causes of action, we renounced the Court’s freewheeling approach in *Alexander v. Sandoval*, 532 U. S. 275 (2001), explicitly repudiating the precedent used to support *Bivens*, 532 U. S., at 287 (abrogating *Borak*, 377 U. S. 426). We explained that, “[l]ike substantive federal law itself, private rights of action to enforce federal law must be created by Congress.” 532 U. S., at 286. “The judicial task is to interpret the statute Congress has passed to determine whether it displays an intent to create not just a private right but also a private remedy.” *Ibid.* Without such intent, “a cause of action does not exist and courts may not create one, no matter how desirable that might be as a policy matter, or how compatible with the statute.” *Id.*, at 286–287.

The Court’s method of implying causes of action for damages in the statutory context provided the foundation for the